

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.

-----X
ISAAC BUAPIM,

Date Filed:

Plaintiff,

Plaintiff designates:

-against-

Bronx County as the place of
trial

EDGAR A. VARGAS, TARGET CORPORATION,
NEW YORK CITY POLICE DEPARTMENT and THE
CITY OF NEW YORK,

The basis of venue is:
Location of Occurrence

Defendants.
-----X

S U M M O N S

Plaintiff's address:
513 Commonwealth Avenue
Bronx, NY 10473

To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney, within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
October 2, 2024

PEÑA & KAHN, PLLC
Attorneys for Plaintiff
Office & P. O. Address
1250 Waters Place, Ste. 901
Bronx, New York 10461
(718) 585-6551
Our File No.: 09762

By: 
ERIC J. GOTTFRIED

Defendants' Addresses:

EDGAR A. VARGAS

c/o NEW YORK CITY POLICE DEPARTMENT

One Police Plaza, Room 601A

New York, New York 10038

TARGET CORPORATION

1000 Nicollet Mall TPS 2672

Minneapolis, MN 55403

NEW YORK CITY POLICE DEPARTMENT

One Police Plaza, Room 601A

New York, New York 10038

THE CITY OF NEW YORK

100 Church Street

New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
ISAAC BUAPIM,

VERIFIED COMPLAINT

Plaintiff,

-against-

EDGAR A. VARGAS, TARGET CORPORATION,
NEW YORK CITY POLICE DEPARTMENT
and THE CITY OF NEW YORK,

Defendants.
-----X

Plaintiff, complaining of the defendants, by his attorneys, PEÑA & KAHN, PLLC, respectfully states and alleges, upon information and belief:

1. That at all times herein mentioned, the plaintiff was a resident of the County of Bronx, City and State of New York.
2. That the occurrence which gave rise to this cause of action took place in the County of Bronx, City and State of New York.
3. That at all times herein mentioned the defendant TARGET CORPORATION (said defendant hereinafter referred to as "TARGET") was a domestic corporation duly organized and existing under and by virtue of the laws of the State of New York.
4. That at all times herein mentioned the defendant TARGET was a foreign corporation duly authorized to do business within the State of New York.
5. That at all times herein mentioned the defendant TARGET was a business entity doing business within the State of New York.
6. That at all times herein mentioned the defendant TARGET was a partnership transacting business in the State of New York.

7. That at all times herein mentioned the defendant THE CITY OF NEW YORK (said defendant hereinafter referred to as "CITY") was a municipal corporation, duly organization and existing under and by virtue of the laws of the State of New York.
8. That at all times herein mentioned the defendant NEW YORK CITY POLICE DEPARTMENT (said defendant hereinafter referred to as "NYPD") was a municipal corporation, duly organization and existing under and by virtue of the laws of the State of New York.
9. That heretofore and on or about February 13, 2024, and within ninety (90) days after the claim herein sued upon arose, the plaintiff (then claimant) caused a Notice of Claim, in writing, sworn to by or on behalf of the plaintiff (then claimant) to be served upon the defendant CITY which said Notice of Claim set forth the name and post office address of the plaintiff (then claimant), the name of plaintiff's attorneys, the nature of the claim, the time when, the place where and the manner in which the claim arose, and the items of damages or injuries claimed to have been sustained so far as then practicable.
10. That at least thirty (30) days have elapsed prior to the commencement of this action since the service of the said Notice of Claim as aforesaid on the defendant and adjustment and payment thereof has been neglected and/or refused by the defendant CITY.
11. That heretofore and on or about February 13, 2024, and within ninety (90) days after the claim herein sued upon arose, the plaintiff (then claimant) caused a Notice of Claim, in writing, sworn to by or on behalf of the plaintiff (then claimant) to be served upon the defendant NYPD which said Notice of Claim set forth the name

and post office address of the plaintiff (then claimant), the name of plaintiff's attorneys, the nature of the claim, the time when, the place where and the manner in which the claim arose, and the items of damages or injuries claimed to have been sustained so far as then practicable.

12. That at least thirty (30) days have elapsed prior to the commencement of this action since the service of the said Notice of Claim as aforesaid on the defendant and adjustment and payment thereof has been neglected and/or refused by the defendant NYPD.
13. That heretofore and on or about February 14, 2024, and within ninety (90) days after the claim herein sued upon arose, the plaintiff (then claimant) caused a Notice of Claim, in writing, sworn to by or on behalf of the plaintiff (then claimant) to be served upon the defendant EDGAR A. VARGAS which said Notice of Claim set forth the name and post office address of the plaintiff (then claimant), the name of plaintiff's attorneys, the nature of the claim, the time when, the place where and the manner in which the claim arose, and the items of damages or injuries claimed to have been sustained so far as then practicable.
14. That at least thirty (30) days have elapsed prior to the commencement of this action since the service of the said Notice of Claim as aforesaid on the defendant and adjustment and payment thereof has been neglected and/or refused by the defendant.
15. That a hearing pursuant to G.M.L. 50-h was held on May 31, 2024.
16. That this action is commenced within one year and after the happening of the event upon which the claim herein sued upon arose.

17. That on November 19, 2023, the defendant TARGET owned the premises and building located at 815 Hutchinson River Parkway, Bronx, New York 10465 also known as Block 5559 and Lot 1001.
18. That on said date, the defendant TARGET was a lessee of the subject premises.
19. That on said date, the defendant TARGET was a lessor of the subject premises.
20. That on said date, the defendant TARGET managed the subject premises.
21. That on said date and at all times herein mentioned, the defendant TARGET occupied the said subject premises.
22. That on said date and at all times herein mentioned, the defendant TARGET controlled the said subject premises.
23. That on said date and at all times herein mentioned, the defendant TARGET owned a retail store on the subject premises.
24. That on said date and at all times herein mentioned, the defendant TARGET operated a retail store on the subject premises.
25. That at all times herein mentioned, defendant TARGET employed personnel for the purposes of providing security and related services at the subject premises.
26. That at all times herein mentioned, defendant TARGET hired an independent contractor to provide security and related services at the subject premises.
27. That at all times herein mentioned, defendant TARGET employed security guards, security staff, loss prevention officers, management, or other employees at the subject premises, including the Target employee who interacted with the plaintiff during the incident complained of herein.

28. That on said date, defendant TARGET was responsible for providing security for the subject premises.
29. That on November 19, 2023, and at all times herein mentioned, the defendant CITY operated the New York City Police Department and employed the officers of said department.
30. That on said date and at all times herein mentioned, the defendant CITY hired the New York City Police Department and employed the officers of said department.
31. That on said date and at all times herein mentioned, the defendant CITY managed the New York City Police Department and employed the officers of said department.
32. That on said date and at all times herein mentioned, the defendant CITY controlled the New York City Police Department and employed the officers of said department.
33. That on said date and at all times herein mentioned, the defendant CITY supervised the New York City Police Department and employed the officers of said department.
34. That on said date and at all times herein mentioned, the defendant EDGAR A. VARGAS, badge number 5493, was an officer of the New York City Police Department and employed by the defendant CITY.
35. At times mentioned herein, defendant EDGAR A. VARGAS, and all other officers of the New York City Police Department were acting under the color of law, to wit: the laws, statutes, ordinances, rules and regulations of the City of New York, State

of New York, the United States and the Constitutions of the State of New York and United States.

FIRST CAUSE OF ACTION AGAINST THE DEFENDANTS

36. Plaintiff repeats, reiterates and re-alleges each and every allegation set forth in paragraph numbers "1" through "35" with full force and effect as though fully set forth at length herein.
37. That upon information and belief, on November 19, 2023, while plaintiff was lawfully shopping within the subject premises, employees of the City, including an officer of the NYPD, defendant EDGAR A. VARGAS, intentionally, unlawfully, falsely, maliciously and wrongfully assaulted, battered, arrested and violated the state and federal constitutional civil rights of the plaintiff at or in the vicinity of 815 Hutchinson River Parkway, Bronx, NY 10465, and continuing at Jacobi Medical Center, 1400 Pelham Parkway South, Bronx, NY 10461.
38. The aforesaid was committed by the defendants upon the plaintiff with his awareness and without warrant, probable cause, justification, the plaintiff's consent or privilege of law.
39. That said assault and wrongful arrest as well as the unsafe conditions that allowed said assault to occur within the subject premises were willfully and maliciously caused/created/incited by an individual who, acting in the scope of their employment with defendant TARGET, falsely and publicly accused the plaintiff of wrongdoing; negligently and unreasonably initiated a response by New York City Police Officers against the Plaintiff and discriminated against the plaintiff on the basis of his race.

40. That at no point did the subject target employee have any rational indication that the plaintiff was engaging in any wrongdoing within the subject premises, and reported the plaintiff to the police merely because the plaintiff was a black individual.
41. That in response to said report/accusations of the subject Target employee, a NYPD officer, more particularly defendant EDGAR A. VARGAS, arrived, questioned, and later detained the plaintiff, repeatedly made threats and unlawfully touched/shoved the plaintiff in an aggressive manner for several minutes in open view of the public, humiliating, intimidating and embarrassing the plaintiff who was lawfully within the subject premises.
42. That defendant TARGET, its agents, servants, and/or employees, despite knowledge that the accusations of wrongdoing on the part of the plaintiff were false and/or made without any rational basis, allowed and/or encouraged the police stop, questioning, and harassment of the plaintiff to continue uninterrupted within the subject premises.
43. That said public intimidation and harassment occurred directly prior to the aforementioned subject assault and wrongful arrest of the plaintiff by the defendants.
44. That the said occurrence and the injuries resulting therefrom and sustained by the plaintiff were caused solely and wholly by reason of the negligence and carelessness of the defendant TARGET, its agents, servants, independent contractors and/or employees in connection with the ownership, management, maintenance, operation, and control of the said premises.

45. That the defendant TARGET is liable for the conduct of the subject employee by virtue of respondent superior.
46. That on said date, defendant TARGET, its agents, servants, and/or employees, failed to intervene to prevent the unlawful assault within the subject premises.
47. That the NYPD Officer, EDGAR A. VARGAS, was acting within the scope of his employment as an officer of the defendant CITY and acting under the color of law.
48. That the force used by the defendants against the plaintiff was excessive and not reasonably necessary.
49. That the defendant NYPD Officer EDGAR A. VARGAS was negligently hired, trained, retained and supervised by the defendant CITY.
50. That the plaintiff was denied medication, food and sanitary facilities and further humiliated, degraded and demeaned, and the plaintiff was severely and seriously injured, suffered and still suffers and will continue for some time to come to suffer physical, emotional and mental injuries, and the plaintiff has become sick, sore, lame and disabled and so remain, and upon information and belief, the plaintiff is permanently injured.
51. That the aforesaid occurred solely and wholly as a result of the negligence of the defendants herein and without any negligence on the part of the plaintiff contributing thereto.
52. That one (1) or more of the exceptions set forth in CPLR Section 1602 applies to this action.

53. That the plaintiff continues to receive medical assistance in an effort to heal his injuries and the effects thereof have not been fully determined and cannot be set forth by the plaintiff at this time.
54. As a result of the foregoing by the aforesaid the defendants, the plaintiff has suffered serious and permanent physical and psychological injuries, and has been damaged in a sum that exceeds the jurisdictional limits of all lower courts of the State of New York.

**SECOND CAUSE OF ACTION ON THE BASIS OF
FALSE ARREST & FALSE IMPRISONMENT**

55. Plaintiff repeats, reiterates and re-alleges each and every allegation set forth in paragraph numbers "1" through "54" with full force and effect as though fully set forth at length herein.
56. That the defendant EDGAR A. VARGAS, in his capacity as an officer of the defendant CITY, was acting within the scope of his employment as NYPD officers and under the color of law, when he falsely arrested and falsely imprisoned the plaintiff. The arrest and imprisonment began on November 19, 2023, in the vicinity of 815 Hutchinson River Parkway, Bronx, NY 10465, and continuing at Jacobi Medical Center, 1400 Pelham Parkway South, Bronx, NY 10461.
57. That on the aforementioned places and dates, the defendant EDGAR A. VARGAS, in his capacity as a police officer intentionally and without the right to do so, seized the person and liberty of the plaintiff: hand cuffed, arrested, confined, imprisoned and took the plaintiff into his custody.
58. That the plaintiff was fully aware and conscious of the defendant's actions, including his arrest, confinement and imprisonment.

59. That the plaintiff at no point consented to his arrest, confinement and imprisonment by the defendant.
60. That the defendant lacked probable cause and did not have an arrest warrant to effectuate the plaintiff's arrest and imprisonment. As such, the plaintiff's arrest, confinement and imprisonment was not otherwise privileged and thus unlawful.
61. As a result of the foregoing false arrest and false imprisonment by the aforesaid defendant, the plaintiff has suffered serious, permanent physical and psychological injuries, and has been damaged in a sum which exceeds the jurisdictional limits of all lower courts of the State of New York.

**THIRD CAUSE OF ACTION ON THE BASIS
OF ASSAULT AND BATTERY**

62. Plaintiff repeats, reiterates and re-alleges each and every allegation set forth in paragraph numbers "1" through "61" with full force and effect as though fully set forth at length herein.
63. That on the aforementioned dates and places, the defendant EDGAR A. VARGAS in his capacity as an officer of the defendant CITY, acting within the scope of his employment as a NYPD officer and under the color of law, assaulted and battered the plaintiff.
64. That on the aforementioned date and place, the subject officer of the defendant CITY, was armed with loaded firearms, asps and pepper spray.
65. That on the aforementioned date and place, the subject officer of the defendant CITY, intentionally placed the plaintiff in apprehension of imminent harm and/or offensive contact.

66. That on the aforementioned dates and places, the subject officer of the defendant CITY, intentionally caused the plaintiff to become concerned that the defendants were about to cause him harmful and/or offensive bodily contact.
67. At no time did the plaintiff consent to the aforementioned illegal actions of the defendants.
68. That on the aforementioned dates and places, an officer of the defendant CITY, intentionally pepper sprayed, touched, made harmful, offensive and bodily contact with the plaintiff.
69. That on the aforementioned dates and places, an officer of the defendant CITY, intentionally pepper sprayed, touched, made harmful, offensive and/or bodily contact with the plaintiff. Said touching was done with excessive force.
70. That on the aforementioned dates and places, the plaintiff neither resisted arrest nor attempted to escape.
71. That on the aforementioned dates and places, an officer of the defendant CITY, used unreasonable and excessive force in effectuating the plaintiff's arrest.
72. At no time did the defendants have legal cause to intentionally pepper spray, touch, make harmful, offensive and/or bodily contact with the plaintiff.
73. At no time did the plaintiff consent to this illegal harmful, offensive and bodily contact nor was it privileged by law.
74. That on the aforementioned dates and places, officers of the defendant CITY, used excessive force and used such force without the plaintiff's consent.
75. As a result of the foregoing assault and battery by the aforesaid defendant CITY, the plaintiff has suffered serious, permanent physical and psychological injuries,

and has been damaged in a sum which exceeds the jurisdictional limits of all lower courts of the State of New York.

FOURTH CAUSE OF ACTION ON THE BASIS OF CONSTITUTIONAL CIVIL RIGHTS VIOLATIONS PURSUANT TO 42 UNITED STATES CODE § 1983

76. Plaintiff repeats, reiterates and re-alleges each and every allegation set forth in paragraph numbers "1" through "75" with full force and effect as though fully set forth at length herein.
77. That on the aforementioned dates and places, the defendant EDGAR A. VARGAS in his capacity as an officer of the defendant CITY, acting within the scope of his employment as an NYPD officer, while armed and effectuating the arrest and seizure of the plaintiff, did search, assault, commit a battery and restrain him without probable cause, a court authorized search warrant and/or arrest warrant.
78. That the defendant EDGAR A. VARGAS physically seized the person and liberty of the plaintiff unlawfully and with the use of excessive force.
79. That on the aforementioned dates and places, the defendant EDGAR A. VARGAS in his capacity as an officer of the defendant CITY, acting within the scope of his employment as an NYPD officer, under the laws, statutes, rules and regulations of the City of New York, State of New York, the United States and the Constitution of the United States did violate and deprive the rights, privileges and/or immunities of the plaintiff in the following respects:
 - i. Freedom from assault;
 - ii. Freedom from battery;
 - iii. Freedom from illegal search and seizure;
 - iv. Freedom from false arrest;
 - v. Freedom from malicious prosecution;
 - vi. Freedom from the use of excessive force during the arrest process;
 - vii. Freedom from unlawful imprisonment;

- viii. Freedom from summary punishment;
- ix. Freedom from cruel and unusual punishment;
- x. Freedom from loss of liberty; and
- xi. Freedom from illegal search.

80. The defendant CITY, subjected the plaintiff to such deprivations, either in a malicious or reckless disregard for the plaintiff's rights or with deliberate indifference to those rights protected under the Fourth and Fourteenth Amendments of the United States Constitution.
81. The direct and proximate result of the defendants' acts are that the plaintiff has suffered severe and permanent injuries of a physical and psychological nature. He was forced to endure pain and suffering, all to his detriment.
82. That by reason of the foregoing, the plaintiff is entitled to full cost of attorney's fees and costs incurred in prosecuting this action.
83. That by reason of the foregoing, the plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower courts of the State of New York, together with said attorney's fees and costs incurred in prosecuting this action.

FIFTH CAUSE OF ACTION ON THE BASIS OF CONSTITUTIONAL CIVIL RIGHTS VIOLATIONS PURSUANT TO 42 UNITED STATES CODE § 1983 (MONELL).

84. Plaintiffs repeats, reiterates and re-alleges each and every allegation set forth in paragraph numbers "1" through "83" with full force and effect as though fully set forth at length herein.
85. That at all relevant times, Defendants CITY and NYPD maintained a custom, practice and/or policy of improperly training and supervising their police officers to respond to complaints of criminal wrongdoing.

86. The policies, customs, and/or practices of defendants CITY and NYPD allowed defendant EDGAR A. VARGAS, and other officers acting in their employment as NYPD police officers, to deprive the Plaintiff of his rights under both Federal and State law resulting in them suffering serious injury.
87. That as a result of the foregoing policies, customs and/or practices, the plaintiff has suffered and continues to suffer serious injury and damages.
88. That by reason of the foregoing, the plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower courts of the State of New York, together with said attorney's fees and costs incurred in prosecuting this action.

**SIXTH CAUSE OF ACTION AGAINST DEFENDANTS CITY
AND NYPD ON THE BASIS OF NEGLIGENT HIRING**

89. Plaintiff repeats, reiterates and re-alleges each and every allegation set forth in paragraph numbers "1" through "88" with full force and effect as though fully set forth at length herein.
90. Upon information and belief, the defendant CITY was negligent and careless and failed to exercise reasonable care and diligence in the hiring of the officer who committed the aforementioned acts and deprivations on the plaintiff on the aforementioned dates and places.
91. Prior to said date, and at all times herein mentioned, the defendant CITY failed to perform adequate background investigations and interviews of potential employees, agents and independent contractors; negligently performed investigations and interviews causing the defendants to hire persons who were incompetent, poorly trained, inexperienced, indolent, lazy, immoral, negligent and reckless.

92. Prior to said date, and at all times herein mentioned, the defendant CITY failed to use reasonable care in the hiring and employment of its officers in that the defendant failed to ascertain that the police officer, who committed the aforementioned acts and deprivations on the plaintiff, was incompetent to do his work without danger of harm to others.
93. Prior to said date, and at all times herein mentioned, the defendant CITY failed its duty to know that the police officer it hired, who committed the aforementioned acts and deprivations on the plaintiff, possessed vicious propensities.
94. Prior to said date, and at all times here mentioned, the defendant CITY had knowledge of facts about the police officer it hired, who committed the aforementioned acts and deprivations on the plaintiff, that would lead a reasonably prudent person to conduct an investigation that could have uncovered the above stated information about the employee and failed to do so.
95. As a result of the foregoing negligence and lack of due care by the defendant CITY, its agents, servants and/or employees, the plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower courts of the State of New York.

**SEVENTH CAUSE OF ACTION AGAINST THE DEFENDANTS
CITY AND NYPD ON THE BASIS OF NEGLIGENT TRAINING**

96. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "95" with full force and effect as though set forth at length herein.
97. That defendant CITY has grossly failed to train and adequately supervise its police officers in the fundament law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an

individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.

98. That defendant CITY was negligent by failing to implement a policy with its Police Department and instruct police officers, who, absent the consent of the plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest and/or search warrant, said police officers of the City of New York are not to arrest individuals such as the plaintiff here where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.
99. Defendant CITY is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:
- i. Probable cause must be present before an individual such as the plaintiff herein can be arrested;
 - ii. Force cannot be used against an individual who does not physically resist arrest or attempt to escape; and
 - iii. An individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.
100. The foregoing acts, omissions and systemic failures are customs, practices and policies of the defendant CITY which caused the subject police officer, to falsely arrest, maliciously prosecute, illegally seize and search the plaintiff commit an assault/battery to his person and deny him prompt medical attention under the belief that he would suffer no disciplinary actions for his failure to take proper or prudent steps in this case.

**EIGHTH CAUSE OF ACTION AGAINST DEFENDANTS CITY
AND NYPD ON THE BASIS OF NEGLIGENT SUPERVISION**

101. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "100" with full force and effect as though set forth at length herein.
102. Defendant CITY was negligent in that prior to and at the time of the acts complained of herein, defendant CITY knew or should have known of the bad disposition of defendant EDGAR A. VARGAS or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning his bad disposition and the fact that this officer was not suitable to be hired and employed by the defendants CITY and NYPD and that due to his lack of training, this officer should have had adequate supervision so that he would not arrest innocent individuals nor use excessive force during the arrest process.
103. That this action falls within one or more of the exceptions contained in CPLR § 1602.
104. That by reason of the foregoing, the plaintiff sustained grievous personal injuries to various parts of the body; suffered and will continue to suffer great loss of dignity, humiliation, pain and anguish in body and mind; suffered loss of liberty; that the plaintiff has received necessary hospital and medical attention by reason of the injuries sustained; that the plaintiff have necessarily received, is receiving and will continue to receive medical care and treatment in connection with the injuries suffered by him, and in connection with which expenses have, are and will continue to be incurred; that the plaintiff has been greatly incapacitated and has been unable to attend to his usual duties as he had theretofore done, and the plaintiff's injuries

are permanent, protracted and disabling in nature, all to the plaintiff's damage as against the defendants in a sum which exceeds the jurisdictional limits of all lower courts of the State of New York.

**NINTH CAUSE OF ACTION AGAINST DEFENDANT TARGET ON THE
BASIS OF NEGLIGENT HIRING, TRAINING, AND SUPERVISION**

105. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "104" with full force and effect as though set forth at length herein.
106. That Defendant TARGET owed a duty of care to the plaintiff to adequately hire, train, retain and supervise its employees at the subject premises.
107. That the defendant TARGET breached the aforesaid duties of care.
108. That prior to said date and at all times herein mentioned, defendant TARGET failed to perform adequate background investigations and interviews of potential employees, agents and independent contractors; negligently performed investigations and interviews causing the defendant TARGET to hire persons who were incompetent, poorly trained, inexperienced, indolent, lazy, immoral, negligent, reckless, violent, prone to violence, of vicious propensities, and criminal.
109. That Defendant TARGET placed their employees, agents, and independent contractors in a position where they could inflict foreseeable harm.
110. That Defendant TARGET placed the subject employee in a position where they could inflict foreseeable harm.
111. That Defendant TARGET knew or reasonably should have known of its employees', more particularly the subject employee's, propensity for committing tortious acts including, inter alia, the complained-of racially discriminatory acts.

112. That Defendant TARGET was negligent in that it failed to take reasonable measures in hiring, training, retraining, retaining, and supervising its employees, agents, and independent contractors that would have prevented the aforesaid injuries to plaintiff.
113. That as a direct and proximate result of this unlawful conduct, plaintiff sustained the damages alleged herein, more particularly in that he sustained grievous personal injuries to various parts of the body; suffered and will continuing to suffer great loss of dignity, humiliation, pain and anguish in body and mind; suffered loss of liberty; that the plaintiff has received necessary hospital and medical attention by reason of the injuries sustained; that the plaintiff have necessarily received, is receiving and will continue to receive medical care and treatment in connection with the injuries suffered by him, and in connection with which expenses have, are and will continue to be incurred; that the plaintiff has been greatly incapacitated and has been unable to attend to his usual duties as he had theretofore done, and the plaintiff's injuries are permanent, protracted and disabling in nature, all to the plaintiff's damage as against the defendants in a sum which exceeds the jurisdictional limits of all lower courts of the State of New York.

TENTH CAUSE OF ACTION AGAINST TARGET
ON THE BASIS OF NEGLIGENCE

114. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "113" with full force and effect as though set forth at length herein.

115. That on said date, while the plaintiff was lawfully and carefully within the defendant TARGET's premises, he was caused to be harassed, assaulted, detained, and wrongfully arrested by reason of the defendant TARGET's negligence.
116. That while plaintiff was lawfully upon the aforesaid premises, employee(s), servant(s), and/or agent(s) of defendant TARGET, willfully, maliciously and without any just cause or provocation caused and/or directed the plaintiff to be assaulted, beat, stuck, kicked, pepper sprayed, harassed and otherwise willfully and maliciously abused.
117. That at all times herein mentioned, the defendant TARGET failed to adequately and responsibly respond to the assault on the plaintiff once it took place
118. That said occurrence and the injuries resulting therefrom and sustained by the plaintiff were caused solely and wholly by reason of the negligence and carelessness of the defendant TARGET, their agents, servants and/or employees in connection with the ownership, management, maintenance, operation and control the said premises.
119. That the said occurrence and the injuries resulting therefrom were caused and/or precipitated by reason of the negligence and carelessness of the defendant TARGET, its agents, servants, independent contractors and/or employees, in that they allowed the assailants to be placed in the same area as the plaintiff without adequate supervision or taking appropriate measures to prevent the assailants from harming the plaintiff; in that the assault was committed upon the plaintiff without cause or justification and was carried out under the direction and/or control of the

defendants, its agents, servants, independent contractors and/or employees, endangering the life and limb of persons thereat.

120. That the defendants negligently failed to provide for the safety, security and protection of the plaintiff by failing to assist them properly allowing them to suffer grave injuries.
121. That the defendants negligently failed to prevent the within incidents of extraordinary violence and intentional infliction of physical and emotional distress by defendant EDGAR A. VARGAS, as well as the other officers and employees acting in the scope of their employment with the said defendants.
122. That as a direct and proximate result of this unlawful conduct, plaintiff sustained the damages alleged herein, more particularly in that he sustained grievous personal injuries to various parts of the body; suffered and will continuing to suffer great loss of dignity, humiliation, pain and anguish in body and mind; suffered loss of liberty; that the plaintiff has received necessary hospital and medical attention by reason of the injuries sustained; that the plaintiff have necessarily received, is receiving and will continue to receive medical care and treatment in connection with the injuries suffered by him, and in connection with which expenses have, are and will continue to be incurred; that the plaintiff has been greatly incapacitated and has been unable to attend to his usual duties as he had theretofore done, and the plaintiff's injuries are permanent, protracted and disabling in nature, all to the plaintiff's damage as against the defendants in a sum which exceeds the jurisdictional limits of all lower courts of the State of New York.

**ELEVENTH CAUSE OF ACTION ON THE BASIS
UNLAWFUL DISCRIMINATORY PRACTICES**

123. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "122" with full force and effect as though set forth at length herein
124. That the defendants owned, operated, managed, maintained and controlled a place of public accommodation.
125. That the defendants, through their police officers, security guards, servants, agents and/or employees carelessly, negligently, wrongfully, wantonly and intentionally discriminated against and/or targeted the plaintiff, in an act of racial and/or ethnic profiling in connection with accusations, charges, slander, arrest, and assault, due to his actual or perceived race, creed, color, and/or national origin, and in the course of the aforesaid unfair and damaging discrimination, violated Federal Civil Rights Laws, the Constitutions of the United States and of New York State.
126. That the defendants improperly and illegally profiled plaintiff because of his actual or perceived race, creed, color, and/or national origin.
127. That in doing so, defendants denied the plaintiffs the accommodations, advantages, facilities or privileges thereof.
128. That the defendants aided, abetted, incited, compelled and coerced the commission of the above stated acts.
129. That the above acts were committed toward plaintiff in violation of N.Y.S. Human Rights Law § 296(2).'
130. That the above acts were committed toward plaintiff in violation of N.Y.C. Admin. Code Law § 8-107.

131. That as a direct and proximate result of this unlawful conduct, plaintiff sustained the damages alleged herein, more particularly in that he sustained grievous personal injuries to various parts of the body; suffered and will continuing to suffer great loss of dignity, humiliation, pain and anguish in body and mind; suffered loss of liberty; that the plaintiff has received necessary hospital and medical attention by reason of the injuries sustained; that the plaintiff have necessarily received, is receiving and will continue to receive medical care and treatment in connection with the injuries suffered by him, and in connection with which expenses have, are and will continue to be incurred; that the plaintiff has been greatly incapacitated and has been unable to attend to his usual duties as he had theretofore done, and the plaintiff's injuries are permanent, protracted and disabling in nature, all to the plaintiff's damage as against the defendants in a sum which exceeds the jurisdictional limits of all lower courts of the State of New York.

TWELTH CAUSE OF ACTION ON THE BASIS OF SLANDER PER SE

132. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "131" with full force and effect as though set forth at length herein.
133. That the defendants made false and defamatory statements of fact about the plaintiff.
134. That the defendants published, shared, delivered, and communicated the false and defamatory statements of fact to other parties, including the New York City Police Department.

135. That the aforesaid false and defamatory statements made by the defendants were made intentionally.
136. That the aforesaid false and defamatory statements made by defendants accused plaintiff of committing serious crimes.
137. That the aforesaid false and defamatory statements made by defendants exposed the plaintiff to public contempt, ridicule, aversion, disgrace, and deprived them of his friendly intercourse in society.
138. That the aforesaid false and defamatory statements made by the defendants were not privileged or authorized in any way.
139. That the aforesaid acts were committed in a grossly irresponsible manner without due consideration for the standards of information gathering and dissemination ordinarily followed by responsible parties.
140. The above caused damage to the reputation of and caused pecuniary loss to Plaintiff.
141. That as a direct and proximate result of this unlawful conduct, plaintiff sustained the damages alleged herein, more particularly in that he sustained grievous personal injuries to various parts of the body; suffered and will continuing to suffer great loss of dignity, humiliation, pain and anguish in body and mind; suffered loss of liberty; that the plaintiff has received necessary hospital and medical attention by reason of the injuries sustained; that the plaintiff have necessarily received, is receiving and will continue to receive medical care and treatment in connection with the injuries suffered by him, and in connection with which expenses have, are and will continue to be incurred; that the plaintiff has been greatly incapacitated

and has been unable to attend to his usual duties as he had theretofore done, and the plaintiff's injuries are permanent, protracted and disabling in nature, all to the plaintiff's damage as against the defendants in a sum which exceeds the jurisdictional limits of all lower courts of the State of New York.

142. That pursuant to CPLR Section 1602(2)(iv), the defendants are jointly and severally liable for all of the plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that the defendants owed the plaintiff a non-delegable duty of care and by reason of the fact that said defendants are vicariously liable for the negligent acts and omissions of each other and/or others who caused or contributed to the plaintiff's damages..
143. That pursuant to CPLR Section 1602(7) the defendants are jointly and severally liable for all of the plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that the defendants acted with reckless disregard of the safety of others.
144. That pursuant to CPLR Section 1602(11), the defendants are jointly and severally liable for all of the plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that the defendants acted knowingly or intentionally, and in concert, to cause the acts or failures which are a proximate cause of the plaintiff's injuries.

THIRTEENTH CAUSE OF ACTION
NEW YORK STATE HUMAN RIGHTS VIOLATIONS

145. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs "1" through "144" with full force and effect as though set forth at length herein.
146. That defendant TARGET made misrepresentations about the Plaintiff
147. That defendant TARGET made misrepresentations about the Plaintiff knowing that they were false.
148. That defendant TARGET made misrepresentations about the Plaintiff with reckless disregard as to their truth or falsity.
149. That defendant TARGET made misrepresentations about the Plaintiff intended to induce reliance, by others, on said misrepresentations.
150. Said reliance on Defendants' misrepresentations, by others, did occur as a result of TARGET's actions.
151. Such reliance by others on Defendants' misrepresentations concerning Plaintiffs, caused to suffer damages.
152. Such reliance by others on Defendants' misrepresentations concerning Plaintiffs, caused Plaintiffs to suffer severe damages.
153. That as a direct and proximate result of this unlawful conduct, plaintiff sustained the damages alleged herein, more particularly in that he sustained grievous personal injuries to various parts of the body; suffered and will continuing to suffer great loss of dignity, humiliation, pain and anguish in body and mind; suffered loss of liberty; that the plaintiff has received necessary hospital and medical attention by reason of the injuries sustained; that the plaintiff have

necessarily received, is receiving and will continue to receive medical care and treatment in connection with the injuries suffered by him, and in connection with which expenses have, are and will continue to be incurred; that the plaintiff has been greatly incapacitated and has been unable to attend to his usual duties as he had theretofore done, and the plaintiff's injuries are permanent, protracted and disabling in nature, all to the plaintiff's damage as against the defendants in a sum which exceeds the jurisdictional limits of all lower courts of the State of New York.

154. That pursuant to CPLR Section 1602(2)(iv), the defendants are jointly and severally liable for all of the plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that the defendants owed the plaintiff a non-delegable duty of care and by reason of the fact that said defendants are vicariously liable for the negligent acts and omissions of each other and/or others who caused or contributed to the plaintiff's damages..
155. That pursuant to CPLR Section 1602(7) the defendants are jointly and severally liable for all of the plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that the defendants acted with reckless disregard of the safety of others.
156. That pursuant to CPLR Section 1602(11), the defendants are jointly and severally liable for all of the plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of

the fact that the defendants acted knowingly or intentionally, and in concert, to cause the acts or failures which are a proximate cause of the plaintiff's injuries.

FOURTEENTH CAUSE OF ACTION

157. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs "1" through "156" with full force and effect as though set forth at length herein
158. That defendant TARGET intended to do harm to Plaintiff
159. That defendant TARGET maliciously intended to do harm to Plaintiff.
160. That defendant TARGET caused harm and damage to Plaintiff.
161. That defendant TARGET caused pecuniary damage to Plaintiff.
162. That defendant TARGET caused special pecuniary damage to Plaintiff
163. That defendant TARGET caused damage and pecuniary damage to Plaintiff without justification.
164. That defendant TARGET acted with the sole malicious intent of causing harm to Plaintiff.
165. That as a result of the foregoing, Plaintiff became injured.
166. That as a result of the foregoing Plaintiff became severely injured.
167. That said occurrence and resulting injuries to Plaintiff were due to the actions of the Defendants and each of them, without any wrongdoing on the part of the Plaintiff contributing thereto.
168. That said occurrence and resulting injuries to Plaintiff were due to the willful and wanton conduct of the Defendants herein.

169. That as a direct and proximate result of this unlawful conduct, plaintiff sustained the damages alleged herein, more particularly in that he sustained grievous personal injuries to various parts of the body; suffered and will continuing to suffer great loss of dignity, humiliation, pain and anguish in body and mind; suffered loss of liberty; that the plaintiff has received necessary hospital and medical attention by reason of the injuries sustained; that the plaintiff have necessarily received, is receiving and will continue to receive medical care and treatment in connection with the injuries suffered by him, and in connection with which expenses have, are and will continue to be incurred; that the plaintiff has been greatly incapacitated and has been unable to attend to his usual duties as he had theretofore done, and the plaintiff's injuries are permanent, protracted and disabling in nature, all to the plaintiff's damage as against the defendants in a sum which exceeds the jurisdictional limits of all lower courts of the State of New York.
170. That pursuant to CPLR Section 1602(2)(iv), the defendants are jointly and severally liable for all of the plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that the defendants owed the plaintiff a non-delegable duty of care and by reason of the fact that said defendants are vicariously liable for the negligent acts and omissions of each other and/or others who caused or contributed to the plaintiff's damages..
171. That pursuant to CPLR Section 1602(7) the defendants are jointly and severally liable for all of the plaintiff's damages, including but not limited to plaintiff's non-

economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that the defendants acted with reckless disregard of the safety of others.

172. That pursuant to CPLR Section 1602(11), the defendants are jointly and severally liable for all of the plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that the defendants acted knowingly or intentionally, and in concert, to cause the acts or failures which are a proximate cause of the plaintiff's injuries.

FIFTEENTH CAUSE OF ACTION

173. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs "1" through "172" with full force and effect as though set forth at length herein
174. That the defendants, through their police officers, security guards, servants, agents and/or employees carelessly, negligently, wrongfully, wantonly and intentionally discriminated against and/or targeted the plaintiff, in an act of racial and/or ethnic profiling in connection with accusations, charges, slander, arrest, and assault, due to his actual or perceived race, creed, color, and/or national origin, and in the course of the aforesaid unfair and damaging discrimination, violated Federal Civil Rights Laws, the Constitutions of the United States and of New York State
175. Defendants subjected and/or cause Plaintiff to be subjected to the deprivation of rights, privileges and/or immunities secured by the United States Constitution while acting under the color of law.
176. Defendants subjected and/or cause Plaintiff to be subjected to the deprivation of rights, privileges and/or immunities secured by the United States Constitution in

violation of 42 U.S. Code Sec 1983 (a/k/a "Civil Rights Act of 1871) while acting under the color of law

177. That as a direct and proximate result of this unlawful conduct, plaintiff sustained the damages alleged herein, more particularly in that he sustained grievous personal injuries to various parts of the body; suffered and will continuing to suffer great loss of dignity, humiliation, pain and anguish in body and mind; suffered loss of liberty; that the plaintiff has received necessary hospital and medical attention by reason of the injuries sustained; that the plaintiff have necessarily received, is receiving and will continue to receive medical care and treatment in connection with the injuries suffered by him, and in connection with which expenses have, are and will continue to be incurred; that the plaintiff has been greatly incapacitated and has been unable to attend to his usual duties as he had theretofore done, and the plaintiff's injuries are permanent, protracted and disabling in nature, all to the plaintiff's damage as against the defendants in a sum which exceeds the jurisdictional limits of all lower courts of the State of New York.
178. That pursuant to CPLR Section 1602(2)(iv), the defendants are jointly and severally liable for all of the plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that the defendants owed the plaintiff a non-delegable duty of care and by reason of the fact that said defendants are vicariously liable for the negligent acts and omissions of each other and/or others who caused or contributed to the plaintiff's damages..

179. That pursuant to CPLR Section 1602(7) the defendants are jointly and severally liable for all of the plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that the defendants acted with reckless disregard of the safety of others.
180. That pursuant to CPLR Section 1602(11), the defendants are jointly and severally liable for all of the plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that the defendants acted knowingly or intentionally, and in concert, to cause the acts or failures which are a proximate cause of the plaintiff's injuries.
181. As a direct and sole result of the foregoing Defendants are liable in law and/or equity to Plaintiff for damages.

SIXTEENTH CAUSE OF ACTION

182. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs "1" through "181" with full force and effect as though set forth at length herein
183. That TARGET through their police officers, security guards, servants, agents and/or employees caused Plaintiff to be falsely imprisoned.
184. That TARGET through their police officers, security guards, servants, agents and/or employees actively participated in the false imprisonment of Plaintiff by importuning Co-Defendant to act, detain, arrest and assault the Plaintiff
185. That as a direct and proximate result of this unlawful conduct, plaintiff sustained the damages alleged herein, more particularly in that he sustained grievous personal injuries to various parts of the body; suffered and will continuing to

suffer great loss of dignity, humiliation, pain and anguish in body and mind; suffered loss of liberty; that the plaintiff has received necessary hospital and medical attention by reason of the injuries sustained; that the plaintiff have necessarily received, is receiving and will continue to receive medical care and treatment in connection with the injuries suffered by him, and in connection with which expenses have, are and will continue to be incurred; that the plaintiff has been greatly incapacitated and has been unable to attend to his usual duties as he had theretofore done, and the plaintiff's injuries are permanent, protracted and disabling in nature, all to the plaintiff's damage as against the defendants in a sum which exceeds the jurisdictional limits of all lower courts of the State of New York.

186. That pursuant to CPLR Section 1602(2)(iv), the defendants are jointly and severally liable for all of the plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that the defendants owed the plaintiff a non-delegable duty of care and by reason of the fact that said defendants are vicariously liable for the negligent acts and omissions of each other and/or others who caused or contributed to the plaintiff's damages..
187. That pursuant to CPLR Section 1602(7) the defendants are jointly and severally liable for all of the plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that the defendants acted with reckless disregard of the safety of others.

188. That pursuant to CPLR Section 1602(11), the defendants are jointly and severally liable for all of the plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that the defendants acted knowingly or intentionally, and in concert, to cause the acts or failures which are a proximate cause of the plaintiff's injuries.

WHEREFORE, the plaintiff demands judgment in each cause of action against the defendants in a sum which exceeds the jurisdictional limits of all lower courts of the State of New York, and in an amount which satisfies diversity jurisdiction of the Federal Courts pursuant to 28 USCA § 1441 and 1332, together with the costs and disbursements of this action.

Dated: Bronx, New York
October 2, 2024

Yours, etc.,

PEÑA & KAHN, PLLC
Attorneys for Plaintiff
Office & P. O. Address
1250 Waters Place, Ste. 901
Bronx, New York 10461
(718) 585-6551
Our File No.: 09762

By: 
ERIC J. GOTTFRIED

VERIFICATION

STATE OF NEW YORK)
) ss:
COUNTY OF BRONX)

ISAAC BUAPIM affirms as follows::

I, ISAAC BUAPIM am the plaintiff in the within action; I have read the foregoing **COMPLAINT** and know the contents thereof; the same is true to my own knowledge except as to those matters therein stated to be alleged upon information and belief, and as to those matters, I believe to be true. I affirm this 9 day of October, 2024 under penalties of perjury under the laws of New York, which may include a fine or imprisonment, that the foregoing is true, and I understand that this document may be filed in an action or proceeding in a court of law.



ISAAC BUAPIM

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.

ISAAC BUAPIM,

Plaintiff,

-against-

EDGAR A. VARGAS, TARGET CORPORATION, NEW YORK CITY POLICE
DEPARTMENT and THE CITY OF NEW YORK,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

PEÑA & KAHN, PLLC
Attorneys for Plaintiff
Post Office Address and Telephone
1250 Waters Place, Suite 901
Bronx, New York 10461
Tel: (718) 585-6551
Fax: (718) 585-6618

Pursuant to 22NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the Courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous



ERIC J. GOTTFRIED, ESQ.
PEÑA & KAHN, PLLC

☐ Notice of Entry

that the within is a (certified) true copy of a
duly entered in the Office of the Clerk of the within named court on

20

☐ Notice of Settlement

that an order
will be presented to the Hon.

of which the within is a true copy
one of the judges of the within court at

on 20 at M.

Dated:

Yours, etc.

PEÑA & KAHN, PLLC
1250 Waters Place, Suite 901
Bronx, New York 10461